

SECTION 4-10 : MPEP Chapter 1400

NOTES:

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QUESTIONS:

2. xxx

Chapter 1400 Summary

OBJECTIVES:

- Know about Certificates of Correction (CoC), Disclaimers, and Reissues and when to use each
- Know rules about broadening claims
- Know the ins and outs of perfecting priority and correcting mistakes
- Know about amendments in a reissue application

KEY LAWS AND RULES

- 37 CFR 1.175 Reissue Oath or Declaration
- 35 USC 251, 252 Reissue
- 35 USC 253 Disclaimer
- 35 USC 254-256 – Certificate of Correction
- 37 CFR 1.322 Certificate of Correction (PTO mistake)
- 37 CFR 1.3233 Certificate of Correction (Applicant's mistake)
- 37 CFR 1.324 Correction of Inventorship by 35 USC 256 (pre-AIA and post-AIA procedures are different)
- 37 CFR 1.78 Correction Priority (pre-AIA and post-AIA procedures are different)

QUICK REFERENCE / INCLUSIONS OF CHAPTER 1400

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1. Certificates of Correction
 - a. For small, minor, non “substance” issues such as spelling errors, typos, etc.
 - b. Cannot be used to introduce new matter
 - c. PTO mistake – no fee for CoC: May file CoC
 - d. Applicant mistake - must pay fee
 2. Disclaimer: Way for owner of a patent to say “we had too much protection”
 - a. Each inventor can only disclaim the % of the patent that the patentee owns
 - b. Statutory disclaimer: patentee releases subject matter by disclaiming one or more claims
 - c. Terminal disclaimer: patentee gives up a portion of the patent term
 3. Reissue: Way to correct the scope & contents of the patent
 - a. Patentee is basically saying the patent is defective and starts over
 - b. Can broaden Claims only <2 years from issue date
 - c. No new matter
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Quick Summary

Chapter 1400 of the MPEP details the steps to take in order to correct a patent. A Certificate of Correction is obtain for minor, clerical-type error that would not require additional examination. A reissue application can be filed to correct errors within an original issued patent. However, there are stipulations and requirements before a reissue can be submitted. Often, reissue applications are filed when claims are either too broad or narrow, when claims to foreign priority were incorrect, or references to other copending applications were wrong. Basically, think about using a reissue to correct major errors, not minor ones.

Most Recent Changes to Chapter 1400 (Version E9)

1. 1402 Now indicates that an error under 35 U.S.C. 251 may be based upon the addition of a claim or claims that is/are narrower in scope than the existing patent claims, without any narrowing of the existing patent claims.
 2. 1406 Revised to indicate that if a reference cited in the original patent is no longer relevant to the claims in the reissue application, it will not be necessary for the examiner to list the reference on the PTO-892 form.
 3. 1414 Applicants need to state all the reasons why the patent is wholly or partly inoperative or invalid in the reissue oath/declaration.
 4. 1455 Examiner should list on a PTO-892 form any reference that was cited during the original prosecution of the patent which is again cited/applied in the reissue application and that applicant should file an IDS in compliance with 37 CFR 1.97 and 1.98 if applicant wishes to ensure that all of the references which were cited in the original patent are cited in the reissue application.
 5. 1490 Additional examples as to which application constitutes the “earlier-filed” application for purposes of making a provisional non-statutory double patent rejection. Form paragraphs have been revised. Forms have been updated.
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DETAILED CHAPTER SUMMARY

Standard/threshold for a correction: only when (1) unintentional/unavoidable and (2) without deceptive intent (so cannot make a change because you “changed your mind”)

4 ways to fix a patent after it issues:

1. Certificate of Correction
2. Reissue
3. Reexamination
4. Disclaimer

Certificate of Correction:

Rules and requirements:

1. Type of mistake: Minor typos and grammar
 - a. “minor” = doesn’t affect the scope or meaning of a patent; non-substantive
2. Fees:
 - a. Free if PTO error (e.g., printing errors) – 37 CFR 1.322
 - b. Fee if your error (and no small entity discount) – 37 CFR 1.323
3. Can be used to correct inventorship when all parties/inventors are in agreement
4. PTO may issue a corrected patent for significant changes
5. Can’t be used to add new matter or anything requiring substantive reexamination
6. Correction is retroactive and becomes part of the patent as of the original issue date (see 35 USC 255)

Correcting Inventorship errors after patent issued (37 CFR 1.324) (AIA) requires:

1. (a): (1) statement from each inventor being added that no deceptive intent, (2) statement from each current inventor that they agree to the change, and (3) statement by all assignees agreeing to change, OR
2. (b) a court order
3. Note: If doing procedure (a) but all inventors don’t agree/sign, or you can’t locate an inventor, then assignee should use Reissue instead

Correcting priority:

35 USC 119(a)-(d) and (f) priority:

1. See MPEP 216
2. May use reissue or certificate of correction, depending on circumstances
3. Certificate of Correction: Effective May 13, 2015, a certificate of correction under 35 USC 255 and 37 CFR 1.323 may be requested and issued in order to perfect a claim for

foreign priority benefit in a patent if (1) the requirements of 35 USC 119(a)-(d) or (f) had been satisfied in the patented application or in a parent application prior to issuance of the patent, and (2) the requirements of 37 CFR 1.55 are met.

4. Reissue is only option (for example) if the requirements of 35 USC 119(a)-(d) or (f) had not been satisfied in the patented application, or its parent, prior to issuance, and the requirements of 37 CFR 1.55 are not met.

35 USC 119(e) Priority:

1. See 37 CFR 1.78
2. Applications filed on or after November 29, 2000: CANNOT use CoC to correct a 119(e) error after a patent has been granted

35 USC 120 Priority:

- a. CoC can be used to for 120 priority under certain conditions to correct:
 - i. (A) the failure to make reference to a prior copending application pursuant to 37 CFR 1.78(a)(2); or
 - ii. (B) an incorrect reference to a prior copending application pursuant to 37 CFR 1.78(a)(2).
- b. (Check MPEP for exact procedures, which differ slightly for filing dates before and after March 16, 2013)
2. Priority was properly claimed but not properly printed
3. If CoC is not available for the correction, reissue may be used instead in most cases

Reissue:

1. the most comprehensive way to fix a patent but there's drawbacks
2. Applies only to current patents which aren't abandoned, expired, etc.
3. Used for major, substantive errors
 - a. Generally used when you claimed too much or too little, or make an error in claiming priority but CoC can't be used, etc.
4. Only filed by patent owner(s) (not licensee)
5. Owner is basically saying that patent is wholly or partly defective
 - a. Must specify at least 1 error in reissue request, which was made with no deceptive intent (not a deliberate error)
 - b. Must offer to surrender the original patent (could lose it all)
 - c. Reissue is examined like a new patent – so more prior art can be brought up

4 “types” of reissue:

1. Broadening:

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- a. new claims based on same disclosure (no new matter)
 - b. must be filed within 2 years of original issue
 - c. inventors must agree
 - d. all parties involved must agree
 - e. cannot broaden to reclaim subject matter given up during original patents prosecution by recapture
 - f. as long as 1 aspect of a claim has been broadened, the claim is said to have been broadened
 2. Narrowing:
 - a. used to overcome newly-discovered prior art
 - b. Kind of like a statutory disclaimer
 - c. No time limit for narrowing claims
 3. Same-scope
 - a. claims of same-scope generally added to avoid indefiniteness errors
 4. Interference
 - a. new claims intended to revoke interference
 - b. can be simply copying claims from another issued patent

Also can be used to correct:

1. Any error which could have been corrected by an amendment during prosecution or by filing in a Continuation
2. Any error which could have been corrected by a CoC or Disclaimer but the Reissue process was already fixing something else
3. Inaccurate disclosure, e.g., can conform drawings to specification and vice versa, but not new drawings
4. Inventorship errors not correctible through certificate of correction, such as lack of consent or all parties not agreeing
5. Priority errors not curable by CoC, such as failure to make a claim for priority or perfect priority (e.g., provide certified copy) or reference co-pending applications
 - a. But there are a few exceptions:
 - b. can't cure failure to claim 119(e) priority to a Provisional
 - c. if didn't claim a Divisional on time, can't cure that in a Reissue

CANNOT use reissue:

1. Add any new matter (so no CIP)? – e.g., to fix enablement issues
2. [Recapture Doctrine] If you made a limitation (gave up scope) or unselected some claims in a Restriction in parent prosecution, can't recapture that in reissue
 - a. but if you introduce new claims, and examiner feels they are distinct invention, can get restriction on the new claims
3. Can't undue a Terminal Disclaimer in a reissue
4. Can't fix best mode errors

How to file reissue:

1. copy of specification & claims & drawings
 - a. need to file new copy of all drawings (b/c not transferred from original)
2. double-column format on single-sided sheets
3. copies of disclaimer, certificate of correction, or reexam certificates must be included if available, & disclosure of any proceedings which patent is or has been involved in
4. amendments:
5. addition
 - a. [removal]
 - b. NO strikethrough, NO double square brackets
 - c. *non-cumulative*, show all changes from original every time (unlike in original prosec.)
 - d. can add or delete entire paragraphs by simple instruction
 - e. new claims get next claim number available, do NOT reassign claim numbers
 - f. must explain new claims
 - g. status of all claims – pending, cancelled
 - h. amended/new drawings on separate sheet with red ink with label “amended”, “new”, or “cancelled”
6. must reassert foreign priority AGAIN (no need for certified copy)
7. consent of all assignees – 1.63
8. offer to surrender; should show at least one error in detail; don’t need to send back original patent
9. New IDS - duty of disclosure still applies
10. oath – by inventors (if broadening) or assignee
 - a. if broadening, all inventors must sign docs as well
11. Filing fee – small-entity discount available

Prosecution of reissue:

1. Reissue opens it all again: all claims, all prior art, no presumptions of validity, etc.
2. Automatically given special status – fast examination - so earlier IDS required/preferred
3. Same as that of a normal application, EXCEPT: file is open to the public for inspection and comment
 - a. Notice of Reissue filing is published in Official Gazette
 - b. examined ~ 2 months later
 - c. third-parties can file a protest within 2 months of Notice publication
4. Patents can be abandoned during a Reissue (so lose all of it)

Restriction Requirement (RR) in reissues:

1. Failing to file divisional after RR - can't fix it, you lost it
2. If you disclose 2 inventions but only claim 1 - no problem; you can file a reissue w/ claims to both, then file divisional reissue to split up (to extent you didn't face RR in original)
3. Divisionals:

- a. If original app claimed 2 inventions, but you forget to file divisional after RR and election ... too bad. Claims you didn't choose are now dedicated to public.
- b. If you disclose 2 inventions but only claimed 1 in original, then no RR (only based on claims) – even if you didn't file divisional in original, you can file reissue, then file divisional reissue to unclaimed 2nd invention
4. So with restrictions/divisionals, you can have multiple reissues

Miscellaneous:

1. You can file a continuation in a reissue - with new oath specifying remaining error to be fixed (but no continuation of reexam)
2. Cannot use reissue to convert a design patent to a utility patent
3. Term (expiration) and maintenance fee due dates for reissued patent remain the same as for the original patent
4. Infringement – no change in effect for substantially-identical claims
5. Intervening Rights for new claims:
 - a. No infringement by others during the period between original patent issue and reissue date; but after reissue date – it's infringement (so *new* claims don't get retroactively applied to original issue date)
 - b. Court can fashion an equitable remedy even for those post-reissue infringers if substantial preparation was made prior to reissue grant
 - i. For example, if infringer is selling/making products before reissued claims add coverage, then it's okay to continue using/selling already-made products, BUT future production should be stopped
6. Co-pending reissue and reexamination: - can be merged, or just cancel one of them

Reissue

Only patent owner

any prior art ok

can broaden within 2 years

Automatic extensions

Mistake required to initiate

Reexamination

Anyone can file

Only patents and publication

No broadening claims

No automatic extensions

No mistake required

Disclaimer:

1. Gives back to the public a portion of the protection received by disclaiming some of the scope/information; dedicate claims/patent to the public
2. MPEP 1490
3. Done only by (full or part-)OWNER of the patent
4. Must: (1) be in writing, (2), record at PTO, and (3) pay fee.
5. Must be done without deceptive intent
6. Statutory disclaimer – patentee gives up subject matter by disclaiming one or more claims
 - a. Use when a claim is invalid (overly broad) or defective
7. Terminal disclaimer – when patentee wants to give up the entire scope fo the patent for a portion of the patent’s term
 - a. Terminal Disclaimers do not carry over to Continuations (unless it says so), but does carry over to CPA and RCE’s
8. Irrevocable and binding on successors-in-interest
 - a. Except: terminal Disclaimers in applications are revocable before patent issues (or in a reexamination, before reexamination certificate issues)
9. Each joint inventor can disclaim only his/her portion of invention
10. A disclaimer does not affect the patent for prior art purposes, just affects owner’s own rights to exclusivity